

		Defendant to file the Cross-Complaint attached to the instant motion as Exhibit A, without any changes, within 10 days of this ruling. Moving Party is to give notice.
53	Varilease Finance, Inc. vs. Tactical Fleet Services, LLC 23-01301701	Motion to Appear Pro Hac Vice The unopposed Application of Seamus W. Appel to appear as counsel <i>pro hac vice</i> on behalf of Plaintiff Varilease Finance, Inc. is GRANTED. Moving attorney met the requirements of California Rules of Court, rule 9.40. Plaintiff or Seamus W. Appel to give notice.
54	Andrews vs. General Motors, LLC 24-01448034	Motion for Attorney Fees The Motion for Attorneys’ Fees and Costs brought by Plaintiff Kimberly Andrews is GRANTED, in part. Defendant General Motors, LLC is ordered to pay Plaintiff attorneys’ fees in the amount of \$20,439.00 and costs in the amount of \$1,010.83, pursuant to Civil Code section 1794, subdivision (d). Plaintiff’s evidentiary objections are OVERRULED. (ROA No. 78.) It is undisputed the Song-Beverly Act allows a prevailing plaintiff to recover “costs and expenses, including attorneys’ fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, §1794, subd. (d).) Additionally, it is undisputed Plaintiff qualifies as a “prevailing party,” for purposes of this provision. Consistent with the Offer to Compromise reached by the parties, the Judgment states: “Plaintiff’s attorney’s fees, expenses and costs that have been reasonably incurred pursuant to California <i>Civil Code</i> § 1794(d) may be determined by the Court via noticed motion. For purposes of any such motion, GM agrees that Plaintiff is the prevailing party.” (See ROA No. 66 [Judgment]; See also ROA No. 45 [Offer to Compromise].) Lastly, there is no dispute this motion was timely brought. (See Cal. Rules of Court rules 3.1702(b)(1) and 8.104(a).) The instant motion was filed on May 11, 2026, prior to entry of Judgment on May 13, 2026. (See ROA Nos. 57 and 66; See also <i>Yuba Cypress Housing Partners, Ltd. v. Area Developers</i> (2002) 98 Cal.App.4th 1077, 1086.) “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) “ ‘In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of

	the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other case.” (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41; See also <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) The Court approves the following rates as reasonable: (1) \$595 per hour for Joseph Kaufman; (2) \$375 per hour for Scott Sanchez; (3) \$375 per hour for Christopher Hunt; and (4) \$125 per hour for Paralegal Melissa Lopez. (See ¶3, ¶6-¶7 and ¶13 of Kaufman Declaration [ROA No. 51]; See also ¶11 and ¶13-¶14 of Sanchez Declaration [ROA No. 55].) The Court has substantially reduced, only, the rate requested for Melissa Lopez, which ranged from \$175 per hour up to \$250 per hour. (See ¶13 of Kaufman Declaration.) As Ms. Lopez has only 3 years of paralegal experience (<i>Ibid.</i>), the Court finds the requested rates are excessive and outside the prevailing fees in the community. The hourly rate found to be reasonable, given the years of experience attested to, is \$125.00. Thereafter, “Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.” (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 34 [cleaned up internal quotations].) “A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (<i>Ibid.</i> [cleaned up internal quotations].) Having reviewed the attached billing and the briefs filed herein, the Court finds the following hours were reasonably incurred: (1) 6.2 hours by Joseph Kaufman; (2) 43.0 hours by Scott Sanchez; (3) 0.00 hours by Christopher Hunt; and (4) 5.0 hours by Melissa Lopez. Reductions were made, where the amount of time billed was excessive considering the work submitted and the experience of counsel, or where work was found to be duplicative or unnecessary. In particular, the Court struck all hours claimed in connection with a Motion to Compel Deposition, as Plaintiff was already awarded sanctions to compensate for these fees. (See ROA No. 45.) Additionally, reductions were made based on unnecessary client communications. These reductions include charges for reviewing and replying to a “client correspondence thanking firm for assistance with lemon vehicle following GM’s repeat noncompliance with the law” (¶2 of Kaufman Declaration and Exhibit A thereto, at pp. 7 [1/20/26] [ROA No. 51]) and a correspondence involving “gratitude for firm’s assistance, next vehicle purchase, and NHTSA research advice.” (<i>Id.</i> at 2/05/2026.) These fees were not reasonably incurred “in connection with the commencement and prosecution” of this action. (Civ. Code, § 1794, subd. (d).) The Court denies the request for a multiplier, as this case did not involve any novel or difficult legal or factual issues. This was a simple lemon law action, which did not require complex litigation and settled within a year.
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		Based on the above, Plaintiff is awarded reasonable attorney’s fees in the amount of \$20,439.00. With respect to costs, it is undisputed that Plaintiff is entitled to costs as the prevailing party in this action and may pursue costs solely via motion. (See ROA Nos. 45 [Offer to Compromise] and 66 [Judgment].) In challenging the amount of costs, Defendant relies almost entirely on Code of Civil Procedure section 1033.5. (See Opposition: 12:6-14:21.) However, costs are requested pursuant to Civil Code section 1794, subdivision (d), which provides that a prevailing buyer in a Song-Beverly action “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses...determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) “[I]t is clear the Legislature intended the word ‘expenses’ to cover items not included in the detailed statutory definition of ‘costs.’” (<i>Jensen v. BMW of North America, Inc.</i> (1995) 35 Cal.App.4th 112, 137 [disapproved on other grounds in <i>Rodriguez v. FCA US LLC</i> (2024) 17 Cal.5th 189].) Based on the above, Plaintiff is entitled to recover costs beyond those permitted within Code of Civil Procedure section 1033.5, provided the costs are found to have been “reasonably incurred.” Having reviewed the attached Memorandum of Costs and all briefs, the Court permits all costs except the following: (1) \$85.07 for filing the Motion for Attorney fees; (2) \$21.12 for filing a Reply; (3) \$21.12 for filing a Request for Dismissal; and (4) \$63.56 associated with the vehicle surrender. With respect to the first three charges, the same are stricken as they were not incurred at the time the memorandum was filed, nor supported by attached invoices. Both Code of Civil Procedure section 1033.5, subdivision (c)(1), and Civil Code section 1794, subdivision (d), require that costs be “incurred,” to be allowable. With respect to the final charge, the Court finds Plaintiff failed to establish the cost was reasonably incurred in connection with the prosecution of this action. (Civ. Code, § 1794, subd. (d).) Consequently, Plaintiff is awarded reasonable costs in the amount of \$1,010.83.
55	DFB Portal, LLC vs. Marco Fine Arts 23-01315041	Motion to Seal The Motion to Seal brought by Plaintiff DFB Portal, LLC and non-party 240 Tech, LLC is DENIED. “The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication.” (<i>Savaglio</i>